

		The court will award interest at the rate of \$194.42/day x 80 days for a total of \$15,553.44. Petitioner also requests \$435.00 in costs for the initial filing fee in this action, which is recoverable. (Code Civ. Proc., § 1293.2; <i>Austin v. Allstate Ins. Co.</i> (1993) 16 Cal.App.4th 1812, 1814.) Based on the foregoing, the petition is GRANTED and the relief described above may be included in the judgment confirming the award. Although Petitioner checked the box in the petition to seek an award of attorney fees, Petitioner also checked the box stating according to proof. Petitioner has not otherwise expressly sought attorney fees in any particular amount, has not cited any specific contractual provision authorizing an award of attorney fees, and has not submitted any evidence as to the amount of attorney fees incurred. As such, the court has not awarded any attorney fees at this time. To the extent any are sought for the court proceedings (as opposed to the arbitration proceedings), they will have to be sought through a post judgment motion. Counsel for Petitioner is ordered to submit a proposed judgment and to give notice of this ruling.
6.	<i>Rudat vs. Liu</i> <i>2026-01546329</i>	Before the court is the petition to vacate the arbitration award filed by petitioner Fred Rudat (Petitioner), and the opposition filed by respondent Di Liu (Respondent) seeking to confirm the same arbitration award. Specifically, Petitioner seeks to vacate the final arbitration award issued by arbitrator Michael J. Lancaster of Judicial Dispute Resolution served on the parties on October 27, 2025. In response, Respondent seeks confirmation of the award. For the reasons set forth below, the petition to vacate the award is DENIED and the request to confirm the award is GRANTED. Under the California Arbitration Act, Code of Civil Procedure section 1281.2 et. seq. (CAA), any party to an arbitration in which an award has been made may petition the court to confirm, correct, or vacate that award. (Code Civ. Proc., § 1285.) The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. (<i>Ibid.</i>) A petition to correct or vacate an award must be served and filed within 100 days after the date the petitioner was served with a signed copy of the award. (Code Civ. Proc., § 1288; <i>Douglass v. Serenivision, Inc.</i> (2018) 20 Cal.App.5th 376,

		384.) The grounds for vacating an arbitration award are statutorily limited. Under the CAA, the court shall vacate the award if the court determines, inter alia, that “[t]he award was procured by corruption, fraud or other undue means” and “[t]here was corruption by any of the arbitrators.” (Code Civ. Proc., § 1286.2, subds. (a)(1),(2).) Here, Petitioner duly served and timely filed its petition to vacate the award. The petition includes a copy of the arbitration agreement and attaches a copy of the final award. (Petition, Attachment 4(B), 8(C).) Although Respondent argues the petition is untimely because it was filed 102 days after service of the award, the final award was served by email (and mail), which extends the time to file the petition by two court days. (Code Civ. Proc., § 1010.6, subd. (2)(B).) Nevertheless, Petitioner provided no evidence, argument, or authority showing the arbitration award itself was improperly procured. Rather, Petitioner argues the arbitrator provided the final award to JDR on February 4, 2025, but JDR refused to serve the award until full payment of an invoice not agreed upon by the parties. (Petition, Attachment 10(C)(2).) Any purported “fraud” or “corruption” occurred after the final award was rendered. That JDR conditioned service of the award on payment of what Petitioner believes is an excessive invoice is not grounds for vacatur under Code of Civil Procedure section 1286.2. Moreover, Petitioner has not provided any declaration or other admissible evidence to support any of these claims. The petition to vacate the final award therefore is DENIED. In the Opposition, Respondent asks the Court to confirm the final award attached as Exhibit 8(c) to the petition and enter judgment thereon. Under the CAA, “[a] response to a petition . . . may request the court to dismiss the petition or to confirm, correct or vacate the award.” (Code Civ. Proc., § 1285.2.) The request to confirm the award is GRANTED. Respondent’s counsel is ordered to submit a proposed judgment and to give notice of this ruling.
7	<i>Michael Basso, Trustee of the Basso Family Trust vs. Huajin Zhou</i> 2026-01550302	Before the court is a petition to compel arbitration filed by petitioners Michael Basso, Donna Basso, and Joseph Michael Basso, trustees of the Basso Family Trust (collectively, Petitioners) and seeking to compel respondent Huajin Zhou (Respondent) to arbitrate Petitioner’s claims pursuant to